I. Sanctions and State Hearings

Regulation

State regulations require that when a participant believes that any program requirement or assignment is in violation of, or inconsistent with, state law and regulations governing the Welfare to Work (WTW) program, the County shall inform him/her of the right either to request a state hearing or to file a formal grievance.

Reference: 10-030 H 'Welfare to Work Grievance'.

http://hhsa-pg.sdcounty.ca.gov/CalWORKS/10-030/Welfare-To-Work_Grievance/H_Welfare-to-Work_Grievance.htm

Sanctions and State Hearings

If an individual appeals his or her sanction through the State hearing process in a timely manner, the sanction may not be imposed until a hearing decision sustaining the county's action is issued. The county must continue to pay cash aid and necessary childcare as long as the individual is otherwise eligible pending the hearing decision. If the county's action is sustained, aid is discontinued effective the end of the payment month in which the hearing decision is received.

Note: The Employment Case Manager (ECM) must make note of the request for a fair hearing and monitor for hearing results. The ECM summarizes all hearing-related activities in CalWIN Case Comments.

Right to File an Appeal or Grievance

Whenever a participant believes that any program requirement or assignment in this program is in violation of his/her WTW plan, the participant may request a state hearing pursuant to MPP Division 22 or utilize the county's formal grievance procedure. If the participant is not satisfied with the grievance procedure, he/she may appeal the decision in accordance with state appeal procedures.

Requirement to Participate Pending Outcome of Appeal

Participants are required to participate in assigned WTW activities pending the outcome of the formal grievance procedure and/or any subsequent appeal. Participants are subject to sanctions only if they fail to participate during the period the grievance procedure is being processed. A participant cannot utilize the grievance procedure to appeal the results of an assessment.

Appeals to the United States

If a participant is not satisfied with the decision of a state fair hearing concerning on-the-job working conditions or worker's compensation

Department of Labor

coverage, the participant can file an appeal with the United States Department of Labor, as provided by federal law.

State Hearing Decision

If the hearing decision is in favor of the…	Then…
County,	cash aid that was paid is not considered an overpayment. The sanction is deferred and not imposed until after the receipt of the hearing decision.
individual,	the County must reimburse the individual for any necessary transportation and/or work-or-training-related expenses that he or she paid out of pocket, or was obliged to pay, during the time the hearing decision was pending.